

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(CIVIL REVISIONAL JURISDICTION)

Present:

Mr. Justice Md. Moinul Islam Chowdhury

Civil Revision No.2485 of 2015

Anowara Begum Muslim Girls High School
and College.

----- The defendant-respondent-petitioner

=Versus=

Md. Abdus Samad.

--- The plaintiff-appellant-opposite-party.

Mr. Gazi Md. Mohsin, Advocate

----- For the petitioner

Mr. Md. Mahbubur Rashid, Advocate,

--- For the opposite-party.

Heard on 10.01.2017 and

Judgment on 23.01.2017

At the instance of the present defendant-respondent-petitioner, the Principal/Secretary, Managing Committee, Anowara Begum Muslim Girls High School and College (the School), this Rule has been issued calling upon the opposite-party No.1 to show cause as to why the judgment and decree dated 09.01.2014 passed by the learned Additional District Judge and insolvency Court, Dhaka in Title Appeal No.91 of 2011 allowing the appeal by reversing the judgment and decree dated 23.01.2011 passed by the learned 3rd Assistant Judge, Dhaka in Title Suit No.10 of 1999 dismissing the suit should not be set aside.

The relevant facts for disposal of the Rule, inter alia, are that the present opposite-party No.1 Md. Abdus Samad as the plaintiff filed the Title Suit No.10 of 1999 filed in court of the learned Assistant Judge, 3rd Court, Dhaka for declaration that the resignation letter dated 05.01.1999 was obtained forcefully by the present petitioner from his post as a teacher of this School.

The plaint case in short is that the present plaintiff-opposite-party join the School on 01.11.1995 as a senior teacher after completion of the training period. The present petitioner did not make him permanent to his post, but the present defendant-petitioner claimed Tk.10,000/- to make his post permanent, which he refused to pay. In the above circumstance, on 05.01.1999 the present petitioner, the managing committee of School asked him to appear in the office. When he appeared in the office, the present petitioner along with others forcefully obtained signature on some blank paper from the present opposite-party. In a compelling situation, he put his signature on the blank papers. On 06.01.1999, the present plaintiff-opposite-party lodged a General Dairy being No.263 of 1999 in the police station describing the situation of threat and about the signature. The present defendant-petitioner adopted a regulation on 08.02.1999 accepting resignation letter given by the present opposite-party.

The present petitioner as the defendant contested the suit by filing a written statement contending, inter alia, the statements made in the plaint are false and also contended that there have been a huge number of complaint against the present plaintiff-opposite-party since his appointment. On 01.03.1999 some girl students and female teachers made a complained against the plaintiff opposite-party to the managing committee about some illicit conduct with them. The present plaintiff-opposite-party Md. Abdus Samad was called to appear before the committee. When the allegations were put to him he confessed about the said illicit conducts and voluntarily signed a resignation letter in order to avoid the consequences of such undesirable conduct as alleged. The managing committee thereafter, adopted resignation to accept his resolution letter.

After hearing the parties the learned Assistant Judge, 3rd Court, Dhaka passed the judgment and decree dated 23.01.2011 dismissing the suit. Being aggrieved the present plaintiff opposite-party preferred the Title Appeal No.91 of 2011 in the Court of learned District Judge which was heard by the learned Additional District Judge and Bankruptcy related Court, Dhaka on transfer who allowed the appeal by his judgment and decree dated 09.01.2014. This revisional application has

been filed challenging the said judgment of the appellate Court below and the Rule was issued thereupon.

Mr. Gazi Md. Mohsin, the learned Advocate appearing for the present petitioner submits that the learned Judge of the appellate court below committed an error of law resulting in an error in decision occasioning failure of justice in failing to consider the findings of the learned trial Court wherein the learned trial Court categorically stated that the plaintiff has failed to mention any thing about the decision of the managing committee on the basis of his resignation whether he has been removed or released or dismissed from his service moreover, he has failed to produce any release or dismissal order before the Court. But without reversing the said finding of the trial Court the appellate Court below allowed the appeal, which is bad in law and liable to be set aside.

The learned Advocate submits that after receiving complaints from the girl students and female teachers, the present opposite-party voluntarily confessed about the allegations and signed the resignation letter on 05.01.1999 by his own handwriting after realizing the result for this kind of conduct in a Girls School and College, such as, no question of application of forces arise, there is no cause of action for filing this suit. Accordingly, the learned trial Court dismissed the suit after considering the relevant evidences, but the learned appellate Court

below came to a wrong conclusion by allowing the appeal without controverting the reasoning's of the trial Court, as such, it is not a proper judgment of reversal, therefore, the Rule should be made absolute.

Mr. Md. Mahburur Rashid, the learned Advocate appearing for the opposite party No.1 firstly drawn my attention that at the time of issuance of the Rule the delay in filing this revisional application of 259 days was condoned but allowing any objection to be raised at the time of final hearing, accordingly, he submits that it is not only the delay in filing the revisional application, but also obtaining the present Rule after swearing an affidavit for filing this revisional application, as such the Rule has been obtained by misleading of this Court, therefore, it should be discharged.

The learned Advocate further submits that the present opposite-party, Abdus Samad, was compelled to sign in some blank papers by the present petitioner (the managing committee of this School), which was subsequently shown as resignation letter. In fact two resignation letters which are created by practicing fraud and the present plaintiff-opposite-party could prove its case as the application forged by submitting document of G.D. Entry No.263 dated 06.01.1999 with P.S. Kotwali, Dhaka and the learned appellate Court below allowed the appeal

lawfully by setting aside the judgment and decree passed by the learned trial Court, as such, the Rule should be discharged.

Considering the above submissions made by the learned Advocates appearing for the respective parties and also considering the application filed the revisional application under section 115(1) of the Code of Civil Procedure along with the annexures therein, in particular, the impugned judgment and decree passed by the learned appellate Court below and also considering the materials in the lower Court records, it appears that the present opposite-party Md. Abdus Samad was appointed as the senior teacher on 01.11.1995 in Anowara Begum Muslim Girls High School and College situated at 13, Nazimuddin Road, Kotwali, Dhaka. It further appears the present opposite-party has been serving as the teacher, but he was not made permanent in his post as a teacher at least until 1999. It also appears that there were some allegations and complaints against the present opposite-party as the teacher on several occasions. There was a complaint by some of the students of the girls School for the obscene (কুরুচিপূর্ণ) comments about these girls, thus, a number of girls made some allegations against the present opposite party, Abdus Samad, for harming their modesty as the students of Girl School.

Having said the above, a question arises whether there was any obscene (কুরাচিপূর্ণ) comments made by the present opposite-party relating to any girl of the School? The present petitioner as the defendant failed to prove any evidence regarding any obscene (কুরাচিপূর্ণ) comments made by the present opposite-party. However, in this regard, I consider that any Girl School or College would normally and naturally resolve such kind of allegations quietly and quickly in order to preserve privacy and dignity of the girls in question as well as the dignity and respect of the School and College to all the guardians and students and also to protect and preserve the social standard of the girls School and College to the ordinary people considering the social impact of such kind of immoral conduct by any teacher.

In the event of abovementioned allegations against the present opposite-parties, it could have been resolved either by drawing a departmental proceeding against him or by way of a voluntary resignation by himself. In the instant case, it appears from the record exhibits 'ka' & 'kha' both dated 05.01.1999 which have been written and signed by the present opposite party in order to resign after confronting with the allegations from the managing committee on the basis of the complaints made by some girls and meal teachers for making obscene (কুরাচিপূর্ণ) comments. In this regard, the plaintiff -

opposite-party denied the allegations. Whereas, the present defendant-petitioner as the School Managing Committee taken the allegations into cognizance and decided to resolve the matter by calling up Mr. Abdus Samad, who claimed to have confessed about the allegations and made by the girls and teachers. Accordingly, he has written and signed a resignation letter stating his personal reason. He also written and signed another resignation latter accepting the misconduct by him and to preserve the dignity of the School. It can be considered that if those were his voluntary resignation then the present opposite-party does not have any cause of action to file the suit. However, the present opposite-party lodged a G.D. Entry next day on 06.01.1999 claiming that the resignation was obtained by applying force upon him by managing committee.

I have carefully examined the submission made by the learned Advocate appearing for the opposite-party and also examined the record regarding the nature of force claimed to have applied upon him but I am not satisfied as to the nature of force or threat upon the present opposite-party which made him to sign two resignation letters because each one of these resignation letters contains different basis for resignation. The present opposite-party as the plaintiff failed to prove the nature of force which compelled him to resign. Therefore, it appears to me that the

resignation or resignations (Exhibits- ka & ka-1) seems to be a voluntary resignation. As it is voluntary resignation on the part of the present opposite-party, there was no cause of action to file the suit.

Regarding the submissions made by the learned Advocate for the present opposite-party as to the filing of revisional application beyond limitation period i.e. delay of 259 days. From the Rule issuing order it appears that this Court condoned the delay in filing this revisional application with a condition to raise any objection at the time of hearing. In my view the delay of 259 days should be condoned. The another submission regarding obtaining this Rule after 45 days from the date of affidavit. I have carefully noticed that the aforesaid affidavit was sworn in 03.03.2015 and the application for condonation was filed on 05.08.2015. In this regard, filing of a revisional application does not automatically comes as revisional application under section 115 of the Code Civil Procedure unless and until it has been moved along with proper application for issuance of Rule, because in a matter of Civil Revision a number is registered after issuance of the Rule, therefore, the High Court Rules contain counting date from the date of any affidavit before moving a Motion. There is no delay in filing this revisional application.

From the earlier discussions, I am of the opinion that the present plaintiff-opposite-party failed to show with some absolute evidence for application of force upon him which compelled him to sign the resignation letters from the post of a teacher. Therefore, it can be concluded that the resignation was given voluntary, therefore, no questions arises thereabout. I am of the view that the matter of resignation has also been considered by the managing committee on 08.02.1999 in its meeting and adopted a regulation being Regulation No.2 regarding the resignation of the similar nature by Mr. Nozrul Islam and Abdus Samad.

I am now inclined to consider how the trial Court and the appellate Court below taken the matter and decided by conflicting judgments.

The learned trial Court after considering the evidence came to a lawful conclusion to dismiss the suit on the basis of the following finding:-

“ বাদী তার নিকট থে-ক জোর পূর্বক নেয়া পদত্যাগ পত্রের ভিত্তি-ত বিবাদী পক্ষ এ বিষ-য় কী সিদ্ধান্ত নি-য়-ছ তাহা তিনি তার আরজি-ত উ-ল্লখ ক-রননি। ঐ পদত্যাগ পত্রের ভিত্তিতে বাদীকে চাকুরী হই-ত অব্যাহতি দেয়া হ-য়-ছ কিনা তাহাও তিনি ব-লননি বা কোন অব্যাহতি পত্র আদালতে দাখিল ক-রন নি। অন্যদি-ক বিবাদী পক্ষ তাহা-দর জবা-বর সমর্থ-ন মা-নজিৎ কমিটির কত জন সভায় বাদীর পদত্যাগ পত্র গৃহীত হয়েছে এই মর্মে কোন পদত্যাগ পত্রের ভিত্তিতে অব্যাহতি প্রদান সংক্রান্ত কোন কাগজ দাখিল ক-রনি।

বাদীর নিকট থে-ক নেয়া পদত্যাগ পত্রের ভিত্তিতে বিবাদী পক্ষ বাদী-ক তার পদ হই-ত অব্যাহতি প্রদান ক-রছেন। এই ম-র্ম বাদী কোন বক্তব্য প্রদান ক-রনি বা কোন কাগজাদি দাখিল ক-রনি তাই তা-ক পুনঃবহা-লর প্রশ্ন থা-ক না”

On the other hand, the learned appellate Court below by reversing the judgments of the trial Court came to an unlawfully conclusion to allow the appeal on the basis of the following finding :-

“ নথি পর্যা-লাচনায় দেখা যায় যে, আপীলকারী/ বাদী তার আরজি-ত সুস্পষ্ট ভা-ব ব-ল-ছেন যে, রেসপন-ডন্ট/ বিবাদীগ-ন তার কা-ছ থে-ক পদত্যাগ পত্র গ্রহণের পর তা-ক নালিশী স্কুল হ-ত তাড়ি-য় দি-য়-ছ এবং বিবাদীপক্ষ প্রদর্শনী-খ/১ হি-স-ব প্রমানিত রেজু-ল-শ-ন বাদী মো: সামাদ ব্যক্তিগত অসুবিধার কারণে পদত্যাগ পত্র পেশ করায় তার পদত্যাগ পত্রটি গ্রহণের সিদ্ধান্ত গ্রহীত হয়েছে। তবে উক্ত সভার রেজু-ল-শনটি গত ১৪/০১/৯৯ খ্রি: তারি-খর মূলতবি সভা হি-স-ব গত ০৮/০২/৯৯ খ্রি: তারি-খর বি-কল ৩.৩০ ঘটিকায় গৃহীত হয়। এই সভার উপস্থিত ব্যক্তিদের স্বাক্ষর রেজুলেশন বইতে থাকলেও সিদ্ধান্ত অনু-মাদ-নর বি-ষ-য় সভ্যগ-নর কোন স্বাক্ষর নাই। নথি পর্যা-লাচনায় দেখা যায় যে, পক্ষদ্ব-য়র ম-ধ্য আ-রা একাধিক ঘটনা ও মামলা হ-য়-ছ। ত-ব একটি বিষয় লক্ষণীয় যে, আপীলকারী/ বাদী গত ০৬/০১/৯৯ খ্রি: তারি-খ তার নিকট থে-ক জোর পূর্বক পদত্যাগ পত্র গ্রহণ করার দাবী-ত সংশ্লিষ্ট থানায় জিডি দা-য়র কর-লও স্বেচ্ছায় দাখিলকৃত পদত্যাগ পত্রের ভিত্তিতে তা-ক গত ০৮/০২/৯৯ খ্রি: তারি-খর রেজু-ল-শন মূ-ল চাকুরী হ-ত অব্যাহতি প্রদান করা হয়।”

From the above two conflicting decisions on the basis of conflicting findings of the facts, I am of the opinion that the learned trial

Court dismissed the suit after taking into consideration of all relevant evidence including depositions and documentary. Whereas, the learned appellate Court below failed to appreciate the documents produced by the petitioner, therefore, misread the essential evidence in the present case, therefore, came to a wrongful conclusion, which is liable to be set aside. I am therefore, inclined to interfere in to the judgment and decree passed by the learned appellate Court below.

Accordingly, I find merit in the Rule.

In the result, the Rule is made absolute.

The office is directed to communicate this judgment and decree and also send down the Lower Court Records immediately.